

HAMPTON v EAST BAY MUNICIPAL UTILITY DISTRICT, et al

22CV46329

**DEFENDANT URBAN PARK CONCESSIONAIRE'S SECOND RENEWED MOTION
FOR LEAVE TO FILE MOTION FOR SUMMARY JUDGMENT**

This matter involves personal injuries sustained by Plaintiff Maxwell Hampton ("Plaintiff") while swimming in Lake Comanche. On August 18, 2023, this Court denied Defendant Urban Park Concessionaire's ("UPC") UPC's motion for summary judgment on the grounds that there remained genuine issues of material fact as to whether UPC did something to increase the risk of getting hurt diving off the rock wall. On December 20, 2024, the Court denied UPC's motion for leave to renew summary judgment. Now before the Court is Defendant's second motion for leave to file renewed motion for summary judgment.

UPC's renewed motion focuses on the Court's granting of EBMUD's motion for summary judgment. UPC again contends that it is entitled to renew its motion pursuant to Code Civil Procedure section 437c(f)(2) because there are "newly discovered facts or circumstances or a change of law supporting the issues reasserted in the summary judgment motion." (CCP § 437c(f)(2).) UPC contends that because the Court found that EBMUD was entitled to summary judgment, it should also be entitled to summary judgment.

In granting EBMUD's motion, the Court relied on the governmental immunity found in Government Code section 831.7(b)(2) and found there were no available exceptions to that immunity. UPC is not a governmental entity. Accordingly, the Court's analysis on that issue is inapplicable to UPC. As no new facts or evidence have been presented, the Court **DENIES** UPC's renewed motion for leave to file for summary judgment.

The Clerk shall provide notice of this Ruling to the parties forthwith. Counsel for Plaintiff to prepare a formal Order complying with Rule 3.1312 in conformity with this Ruling.

CREDITORS ADJUSTMENT BUREAU, INC. v HUSTON, III

24CF14419

DEFENDANT'S MOTION TO VACATE/SET ASIDE JUDGMENT

Now before the Court is Defendant's motion to vacate the judgment entered against her on November 13, 2024. She asserts that she was not served at the correct address and that many of the purported debts have been paid. Plaintiff has filed a notice with the Court that it does not oppose the motion.

Accordingly, Defendant's unopposed motion to vacate the judgment is **GRANTED**.

The Clerk shall provide notice of this Ruling to the parties forthwith. Defendant to prepare a formal Order complying with Rule 3.1312 in conformity with this Ruling.